

840 Appeal rights

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Road Safety

Road Safety Act 1986 (Annotated)

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Part 6A – Impoundment, immobilisation and forfeiture of motor vehicles (ss 84C–84ZY)

Division 2 – Impoundment or immobilisation by Victoria Police (ss 84F–84R)

Appeal rights

Last Review: 01/01/2024

840 Appeal rights

Legislation

(1AA) In this section—

offender means a person believed to have committed the relevant offence in relation to which the motor vehicle was impounded or immobilised.

History Note

[Subs (1AA) insrt Act 76 of 2010, s 13(1)]

- (1) If a motor vehicle is impounded or immobilised under this Division, a person whose interests are substantially affected by the impoundment or immobilisation of the motor vehicle may apply to the Magistrates' Court for an order that the motor vehicle be released on the ground that the impoundment or immobilisation is causing, or will cause, exceptional hardship to the applicant or any other person.
- (2) An application under subsection (1) may be made at any time while the motor vehicle remains impounded or immobilised, including where the impoundment or immobilisation continues for longer than the designated period as a result of non-payment of the designated costs.
- (2A) An applicant under subsection (1) must give 7 days written notice of the application and of the venue of the Magistrates' Court at which it is to be heard to the Chief Commissioner of Police.

History Note

[Subs (2A) insrt Act 49 of 2014, s 42]

- (2B)** A notice under subsection (2A) must state the grounds for the claim of exceptional hardship.

History Note

[Subs (2B) insrt Act 49 of 2014, s 42]

- (2C)** The Magistrates' Court must not deal with, or determine, an application under subsection (1) unless it is satisfied that the applicant has complied with the requirements of subsections (2A) and (2B).

History Note

[Subs (2C) insrt Act 49 of 2014, s 42]

- (3)** Subject to subsections (3A), (3B) and (3C), on an application made under subsection (1), the Magistrates' Court may make an order that a motor vehicle impounded or immobilised under this Division be released to a specified person if the Court is satisfied that the impoundment or immobilisation is causing, or will cause, exceptional hardship to the applicant or any other person.

History Note

[Subs (3) am Act 76 of 2010, s 13(2)]

- (3A)** If—
- (a)** the offender is disqualified from obtaining a driver licence or learner permit;
or
 - (b)** the offender's driver licence or learner permit is suspended—
- for a period longer than the period of impoundment or immobilisation, the Magistrates' Court must not consider any exceptional hardship caused to the offender.

History Note

[Subs (3A) am Act 5 of 2016, s 36 and Sch 1 item 43; insrt Act 76 of 2010, s 13(3)]

- (3B)** The Magistrates' Court must not make an order under subsection (3) on the grounds of exceptional hardship relating to the offender's employment unless the applicant satisfies the Court that—
- (a)** driving the impounded or immobilised motor vehicle is essential (not merely convenient) for the offender's employment; and
 - (b)** no other transport to his or her place of employment is available to the offender; and
 - (c)** the offender, after making reasonable enquiries, is unable to arrange for another person to drive the offender to his or her place of employment.

History Note

[Subs (3B) insrt Act 76 of 2010, s 13(3)]

- (3C)** In determining whether to make an order under subsection (3), the Magistrates' Court must have regard to the safety of the public and the public interest in preventing the use of a motor vehicle that the Court considers is reasonably likely in all the circumstances to be used for further driving offences.

History Note

[Subs (3C) insrt Act 76 of 2010, s 13(3)]

- (4)** If the Magistrates' Court makes an order under subsection (3) it may order that the applicant is not liable to pay all or part of the designated costs.

History Note

[S 84O am Act 5 of 2016; Act 49 of 2014; Act 76 of 2010; insrt Act 93 of 2005, s 4]

View [s 84O of the Road Safety Act 1986 \(Vic\)](#) within the legislation collection.

“offender” – s 84O(1AA) [\[RSA.84O.20\]](#)

Who can apply for release of the motor vehicle – s 84O(1) [\[RSA.84O.40\]](#)

Time for application – s 84O(2) [\[RSA.84O.60\]](#)

Basis for application for release of motor vehicle – s 84O(3) [RSA.84O.80]

Exceptions to the exceptional hardship provision – s 84O(3A), (3B), (3C) [RSA.84O.100]

Costs consequences of successful application – s 84O(4) [RSA.84O.120]

[RSA.84O.20] “offender” – s 84O(1AA)

For the purposes of s 84O, an “offender” is the person who the informant believes to have committed the relevant offence¹ in relation to which the motor vehicle was impounded or immobilised under Pt 6A.

[RSA.84O.40] Who can apply for release of the motor vehicle – s 84O(1)

A person whose interests are “substantially affected” by the impoundment or immobilisation of the motor vehicle may apply to the Magistrates' Court for an order that the motor vehicle be released. See *Toward v Slater (Ruling)* [2014] VCC 1681 as to the meaning of “substantially affected”. The appropriate application form can now be found online at <https://www.mcv.vic.gov.au/form-finder/application-vehicle-be-released-impoundmentimmobilisation-due-hardship> (viewed on 17 July 2019).

[RSA.84O.60] Time for application – s 84O(2)

An application for release of the motor vehicle may be made at any time while the vehicle remains impounded or immobilised upon 7 days' notice.² This includes any period of impoundment or immobilisation beyond the designated period³ which occurs as a result of an offender's failure to pay the designated costs.⁴

[RSA.84O.80] Basis for application for release of motor vehicle – s 84O(3)

An application may be made on the ground that the impoundment or immobilisation is causing, or will cause, “exceptional hardship” to the applicant or any other person.

“Exceptional hardship” is not defined in the *Road Safety Act 1986*. There are a small number of cases considering the meaning of “exceptional hardship” which are discussed below.

The rationale for enacting this provision is to “ensure that people are not going to be impacted upon because of the behaviour of a hoon”.⁵

In particular, Parliament was concerned to protect the interests of parents who act as guarantors in the purchase of a motor vehicle which was subsequently used in the commission of a relevant offence.⁶

Given that the purpose of Pt 6A is to provide specific deterrence to recidivist offenders by way of seizure of their motor vehicles, some measure of hardship will likely be experienced as a result of the penalties set out in this Part. It is plain that something more than some hardship, or “ordinary” hardship, must be shown by an offender in order to engage s 84O(3).⁷

Exceptional hardship may be found in cases where the penalty is disproportionate in comparison with the criminality of the offence committed.⁸

The offender’s income and expenditure, and thus his or her ability to replace a forfeited motor vehicle, and the impact on offender’s family members are relevant to the issue of hardship.⁹ In the South Australian decision of *Perovic v Police (SA)*¹⁰ White J gave guidance as to the “... combination of circumstances, and inferences which can be drawn from them, [which] may be capable of supporting a conclusion that forfeiture of the appellant’s vehicle would cause him severe financial and physical hardship” in the context of s 13 of the *Criminal Law (Clamping, Impounding and Forfeiture of Vehicles) Act 2007 (SA)*. In that case:

- the offender lived in small rural town with very limited public transport;
- he was the sole carer for his daughter who attended pre-school 26 km from residence;
- the forfeited vehicle was his only vehicle;
- he was reliant on his elderly mother for transport as he was disqualified from holding a licence;
- he was unemployed and on Centrelink benefits, and suffered from a psychiatric condition which disabled him from working.

Another South Australian decision, *Rogers v Police* (2011) 111 SASR 370; [2011] SASC 215,¹¹ was held to be a “case of an exceptional kind” and forfeiture was declined on the proviso that the public could be protected by other means. In that case, the offender, a 66-year-old retired magistrate:

- was held to be a danger to road users due to his physical and cognitive ill-health;
- had been involved in a serious collision and several minor collisions;
- had continued to drive despite a license suspension;
- was found to be dependent on carers who needed to drive him using his own “virtually new” vehicle.

The impact on the offender's family members was considered in *Toward v Slater (Ruling)* [2014] VCC 1681 at [17]-[26]. Judge Misso granted an application for release of the motor vehicle by the offender's mother in the circumstances:

- the offender's mother was in a poor state of health, suffered from “a chronic illness which affects her mobility”, and was in receipt of a disability pension. The offender, an unemployed bricklayer, lived with her.
- the vehicle was purchased by the offender's mother (who also spent a very considerable amount of money in attempting to repair it) for the primary purpose of providing the offender with a work vehicle.
- the vehicle was used by the mother as her sole means of personal transport, up to three times per week, in order to assist her daughter – who suffered from depression – by minding her daughter's three children, and also to keep medical appointments and access necessary services.

See also [\[RSA.84O.100\]](#) “Exceptions to the exceptional hardship provision – s 84O(3A), (3B), (3C)”.

[RSA.84O.100] Exceptions to the exceptional hardship provision – s 84O(3A), (3B), (3C)

Five years after the “exceptional hardship” provision was introduced into the *Road Safety Act 1986* by the *Road Safety and Other Acts (Vehicle Impoundment and Other Amendments) Act 2005*, the *Road Safety Amendment (Hoon Driving) Act 2010* introduced limits on the reach of the exceptional hardship provisions by way of [s 84O\(3A\), \(3B\) and \(3C\)](#).

The *[Road Safety Amendment (Hoon Driving) Bill 2010]* limits the circumstances where an impoundment or forfeiture sanction can be avoided by an offender on “exceptional hardship” grounds. The Bill provides that applications by offenders to retain their vehicles or for the early release of their vehicles on “exceptional hardship” grounds will not be considered in those cases where the offender has already been disqualified from driving or has had his or her driver licence or permit suspended due to the severity of the offences that were committed. Also, the Bill clarifies the circumstances in which arguments relating to travelling for employment purposes can satisfy the “exceptional hardship” test.¹²

Under [s 84O\(3A\)](#), if an offender has been disqualified or suspended from holding a drivers’ licence for a period that exceeds the period of impoundment or immobilisation of his/her motor vehicle, the court cannot entertain an application for the early release of that vehicle on exceptional hardship grounds.

Under [s 84O\(3B\)](#), an offender who makes an application for the early release of a motor vehicle on exceptional hardship grounds in relation to his/her employment must adduce evidence on three points:

- that driving the motor vehicle is essential to his/her work and not simply a convenient mode of transport;
- that there is no other mode of transport available to travel to his/her work; and
- that he/she has made reasonable enquiries into other arrangements to travel to work.

Where a person other than the offender makes an application for release of a motor vehicle, the application is not limited by the requirements of [ss 84O\(3A\) and \(3B\)](#): *Toward v Slater (Ruling)* [2014] VCC 1681 at [14]-[15].

Under [s 84O\(3C\)](#), evidence of exceptional hardship to an offender must be balanced against issues of public safety and the likelihood that, if released, the motor vehicle would be used to commit further driving offences.

[RSA.84O.120] Costs consequences of successful application – [s 84O\(4\)](#)

If an offender makes a successful application for the early release of that motor vehicle on exceptional hardship grounds, the Magistrates’ Court has a discretion to order that the offender is not liable to pay all or part of the designated costs.¹³

Footnotes

- 1 Defined in [Road Safety Act 1986, s 84C\(1\)](#). See [\[RSA.84C.120\]](#) “relevant offence”.
- 2 The requirements as to notice were amended by the *Road Safety Amendment Act 2014*, s 41, which commenced operation on 1 August 2015.
- 3 Defined in [Road Safety Act 1986, s 84C\(1\)](#). See [\[RSA.84C.40\]](#) “designated period”.
- 4 Defined in [Road Safety Act 1986, s 84C\(1\)](#). See [\[RSA.84C.20\]](#) “designated costs”.
- 5 Mulder, *Second Reading Speech, Road Safety and Other Acts (Vehicle Impoundment and Other Amendments) Bill 2005*, *Hansard* (Legislative Assembly, Parliament of Victoria, 17 November 2005), p 2271.
- 6 Hon PR Hall, *Second Reading Speech, Road Safety and Other Acts (Vehicle Impoundment and Other Amendments) Bill 2005*, *Hansard* (Legislative Council, Parliament of Victoria, 17 November 2005), p 2155.
- 7 [Taylor v Attorney-General \(SA\) \(1991\) 55 SASR 462; 53 A Crim R 166](#) at 177–179 (A Crim R) (a South Australian case which considered the concept of “hardship” in the context of the *Crimes (Confiscation of Profits) Act 1986* (SA)); [R v Lake \(1989\) 44 A Crim R 63](#) at 66–69 (a New South Wales case which considered the concept of “hardship” in the context of *Crimes (Confiscation of Profits) Act 1985* (NSW)); [Frohling v Police \(SA\) \(2011\) 109 SASR 389; \[2011\] SASC 53](#) at [18]–[23] (a case decided under *Criminal Law (Clamping,*

Impounding and Forfeiture of Vehicles) Act 2007 (SA), s 13 which is similar to *Road Safety Act 1986, s 84O(3)*).

8 *R v Bolger* (1989) 16 NSWLR 115; 41 A Crim R 222 at 233–236 (A Crim R) (a decision of the New South Wales Court of Criminal Appeal relating to forfeiture under *Crimes (Confiscation of Profits) Act 1985* (NSW)).

9 *Taylor v Attorney-General (SA)* (1991) 55 SASR 462; 53 A Crim R 166 (a South Australian case which considered the concept of “hardship” in the context of the *Crimes (Confiscation of Profits) Act 1986* (SA)).

10 *Perovic v Police (SA)* (2011) 211 A Crim R 280; [2011] SASC 174 at 289–290 (A Crim R) (a case decided under *Criminal Law (Clamping, Impounding and Forfeiture of Vehicles) Act 2007* (SA), s 13 which is similar to *Road Safety Act 1986, s 84O(3)*).

11 *Rogers v Police (SA)* (2011) 111 SASR 370; [2011] SASC 215 at [54]–[63].

12 Pallas, *Second Reading Speech, Road Safety Amendment (Hoon Driving) Bill 2010, Hansard* (Legislative Assembly, Parliament of Victoria, 2 September 2010), p 3583.

13 “Designated costs” is defined in *Road Safety Act 1986, s 84C(1)*. See [RSA.84C.20] “designated costs”.